

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Catherine Cosmai	Team: Team # 4	CCRB Case #: 201012718	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 09/14/2010 7:54 PM	Location of Incident: Kosciusko Street & Throop Avenue	18 Mo. SOL 3/14/2012	Precinct: 79
Date/Time CV Reported Tue, 09/14/2010 7:54 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/17/2010 1:06 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Marlena Nelson	08854	947696	BN IRT
2. POM Erick Erdaide	08391	947910	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POF Marlena Nelson	Abuse: PO Marlena Nelson questioned § 87(2)(b)	A . Exonerated
B . POF Marlena Nelson	Force: PO Marlena Nelson used physical force against § 87(2)(b)	B . Exonerated
C . POM Erick Erdaide	Force: PO Erick Erdaide used physical force against § 87(2)(b)	C . Exonerated

Case Summary

On September 14, 2010 § 87(2)(b) filed a complaint with IAB against NYPD officers (encl. 5). On September 17, 2010, the CCRB received the complaint (encl. 6A-B). On September 14, 2010, at approximately 7:54 p.m., § 87(2)(b) was standing on the corner of Kosciusko Street and Throop Avenue talking to a friend and playing music in his car. Officers approached § 87(2)(b) to turn down the music. The following allegations resulted from the officers' actions:

Allegation A- Abuse of Authority- PO Marlena Nelson questioned § 87(2)(b) § 87(2)(g)

§ 87(2)(b) is therefore recommended that **Allegation A** be closed as *Exonerated*.

Allegation B- Force- PO Marlena Nelson used force against § 87(2)(b)

Allegation C- Force- PO Erick Erdaide used force against § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation C** be closed as *Exonerated*.

Results of Investigation

Civilian Statement(s) (encl. 7A-E)

Victim: § 87(2)(b)

- § 87(2)(b) was a § 87(2)(b) black male, § 87(2)(b) with dark hair and brown eyes. He worked as a § 87(2)(b) for the § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on Tuesday, October 19, 2010 at 3:19 p.m. On September 14, 2010, at approximately 7:54 p.m., § 87(2)(b) drove from his house to the grocery store on Kosciusko Street and Throop Avenue and parked in front of the store. § 87(2)(b) purchased a 10 ounce can of Redbull. He opened it inside his car and it sprayed all over the car. He put the can in his cup holder. § 87(2)(b)'s music was playing. Two uniformed officers on foot identified as PO Nelson and PO Erdaide approached § 87(2)(b) and PO Erdaide told him to lower the music. § 87(2)(b) lowered the music. § 87(2)(b) took the can of Redbull out of the car and went to talk to his friend by the store. Approximately 30 minutes later, PO Erdaide came back and said "What did you say?" and § 87(2)(b) told him he was talking to a friend, § 87(2)(b). PO Nelson asked § 87(2)(b) what he was drinking. § 87(2)(b) told her it was a Redbull and presented the can to her. PO Nelson asked to smell it. § 87(2)(b) allowed her to smell the Redbull. PO Nelson motioned to hand it back to him and § 87(2)(b) told her he didn't want it anymore. PO Nelson threw the Redbull on the ground. PO Nelson told § 87(2)(b) that she saw him put something in his drink while he was sitting in his car. § 87(2)(b) stated that he did not put anything in the Redbull. § 87(2)(b) does not drink alcohol or use drugs.

§ 87(2)(b) told PO Erdaide and PO Nelson that he was calling 911. § 87(2)(b) called 911 and asked the operator to be connected to Internal Affairs or a Sergeant. He stated that police officers were bothering him and he needed help. While § 87(2)(b) was on the phone making the call to 911, PO Erdaide asked § 87(2)(b) for his identification. § 87(2)(b) asked him why he wanted to see it and PO Erdaide asked him again for his identification. PO Erdaide told § 87(2)(b) to put his hands behind his back approximately two times as he was on the phone.

PO Erdaide kned § 87(2)(b) in the back of his knees causing him to fall to the ground. § 87(2)(b) landed on the ground face forward, causing pain to his knees. § 87(2)(b) was handcuffed around his wrists and his ankles. § 87(2)(b) was moving around because he was agitated.

A marked police van pulled up with five or six uniformed officers. They pulled, moved and shook him around to get him into the van. § 87(2)(b) believed this action caused the pain to his back. After § 87(2)(b) got to the 79th Precinct, an ambulance arrived and § 87(2)(b) was taken to § 87(2)(b).

§ 87(2)(b) complained of pain in his lower back, his left knee and a headache. At the hospital, medical personnel conducted x-rays and gave § 87(2)(b) pain medication for pain to his lower back, left knee and headache. § 87(2)(b) asked to make a phone call at the hospital to call his wife and his job to let them know where he was but PO1 said he would be able to make a phone call once they went back to the 79th precinct. § 87(2)(b) was taken back to the precinct after leaving § 87(2)(b) to be fingerprinted.

Witness: § 87(2)(b) (encl. 8)

§ 87(2)(b) has known § 87(2)(b) for approximately five or six years.

On September 14, 2010, at approximately, 7:54 p.m., § 87(2)(b) stated he was hanging out with § 87(2)(b) outside of Headhunters, a pool hall for approximately an hour. § 87(2)(b) had his music playing in his car but they were not sitting in the car. Officers walked by and asked § 87(2)(b) to turn down the music, which § 87(2)(b) did. Officers walked away and then came back again. PO1 asked § 87(2)(b) what was in the Redbull can and asked to smell it which § 87(2)(b) allowed her to. When PO1 handed it back to him, § 87(2)(b) didn't want it because she had put her nose to it. PO1 threw the Redbull can on the ground. § 87(2)(b) was asked to put his hands behind his back once before PO2 threw him to the ground and handcuffed him. § 87(2)(b) landed on his face. § 87(2)(b) was approximately three feet away during this interaction. § 87(2)(b) stated that § 87(2)(b) was calm and his behavior normal and it did not change once he was questioned.

Attempts to Contact Civilians

The 911 communications revealed that at 7:53 p.m., male caller states police were beating a male at a location. The sprint revealed at 7:54 p.m., an unidentified male caller stated that a male was being handcuffed by officers and was asked by the male to call 911.

In order to attempt to contact potential witnesses, there were two phone numbers obtained from the Sprint that were called. On December 9, 2010, December 10, 2010 December 13, 2010, December 14, 2010 and December 15, 2010, the undersigned called § 87(2)(b) however the person was unavailable and did not have a voicemail set up to leave a message. On December 10, 2010, December 12, 2010, December 14, 2010, December 15, 2010 and December 17, 2010, the undersigned called § 87(2)(b) however, the number was not working.

NYPD Statement(s):

Subject Officer: PO MARLENA NELSON

PO Nelson is a § 87(2)(b)-old black female, § 87(2)(b) with dark brown hair and brown eyes. On September 14, 2010, PO Nelson worked 17:30 to 02:05 and was assigned to foot patrol Post 84. She was working alone but had joining posts with PO Erick Erdaide who was on foot patrol on Lafayette Street. PO Nelson was on duty and dressed in uniform.

Memo Book (encl. 9A-C)

1843: 84 on Post 84

A/o conducted a lawful stop for unreasonable noise from vehicle. A/o approached the perp asked him to turn the music down. He refused began yelling causing public alarm. A/o asked perp twice for i.d. he refused to give it. A/o asked perp to put his hands behind his back. He refused began yelling, scream, flailing his arms causing public alarm making it hard for A/o to make lawful arrest.

CCRB Statement

“PO Erdaide informed me that § 87(2)(b) disclosed to him that ‘some cops get paid to harass people, and some people get paid to harass cops’.”

Online Booking Sheet

The arrest report revealed that at the southwest corner of Throop Avenue and Kosciusko Street PO Nelson upon conducting a lawful stop for unreasonable noise from a vehicle, approached the defendant and asked for him to turn the music down. The defendant refused and began yelling and causing public alarm. PO Nelson then asked for the defendant’s identification twice and the defendant refused to provide her with that information. PO Nelson then asked for the defendant to put his hands behind his back and he began to yell, scream, flailing his arms and causing public alarm making it difficult for her to make a lawful arrest (encl. 14A-C)

On September 14, 2010, at approximately 6:30 p.m. PO Nelson saw § 87(2)(b) but he left for approximately 45 minutes and then returned and talked to his friend.

PO Nelson walked by § 87(2)(b) to speak with PO Erdaide and he said something to his friend about her. PO Nelson stated that people say things all the time so she wasn’t paying attention. § 87(2)(b) then got into his Land Rover which was parked on Kosciusko Street and turned the music up to a very high level. He then opened up all of the doors including the hatch or trunk. § 87(2)(b) was standing in the doorway of the vehicle on the passenger side. PO Nelson and PO Erdaide approached and PO Nelson asked him to turn the music down because it was too loud. § 87(2)(b) refused and told her that she was harassing him and bothering him and asked why he had to turn the music down. PO Nelson then asked him again to turn the music down.

§ 87(2)(b) was drinking from a Redbull can and PO Nelson asked him what he was drinking. § 87(2)(b) told her he was drinking a Redbull. PO Nelson asked to see it for her protection. She stated that she didn’t want him to throw it at her or hit her with it because she has seen that done before. PO Nelson placed the Redbull can on the ground next to him.

PO Nelson asked § 87(2)(b) for his identification and he refused three times. PO Nelson asked him to put his hands behind his back and he refused and began yelling. PO Erdaide grabbed § 87(2)(b)'s left arm. § 87(2)(b) tried to turn his body to the right and PO Nelson pushed § 87(2)(b)'s shoulder. PO Erdaide tried to grab § 87(2)(b)'s other arm to put the handcuffs on him.

PO Nelson told § 87(2)(b) that he was going to be arrested and he had one cuff on. § 87(2)(b) then threw himself on the ground. He was then handcuffed entirely on the ground. PO Nelson did not knee § 87(2)(b) in the back of the knees to get him on the ground. He started screaming that he busted his head open and that he broke various parts of his body. § 87(2)(b) began asking the people on the corner if they caught that on tape and telling them to call Al Sharpton. PO Nelson and PO Erdaide called for back up. The other officers picked him up, carried him and placed him into the police van. They had to carry him into the Precinct because he was not cooperating or standing up on his own.

Because § 87(2)(b) complained about injuries, they took him to the hospital. PO Nelson did not see any visible injuries. EMS took § 87(2)(b) from the precinct to § 87(2)(b) (encl. 10A-D).

Subject Officer: PO ERICK ERDAIDE

- PO Erdaide is a § 87(2)(b) old Hispanic male from Patrol Borough Manhattan North.

§ 87(2)(g)

Medical Records

§ 87(2)(b) and Ambulance Call Report

§ 87(2)(a) PBH §18(6)

NYPD Document(s)

Sprint/ 911 radio communications

The First call on 911 communications with § 87(2)(b) at 7:49 p.m. indicated the following: FPO: "You're not respecting my order. I asked for your identification". § 87(2)(b) "Identification for what?" The officer asked § 87(2)(b) to put his hands behind his back approximately six times during this 911 call. § 87(2)(b) was talking loudly on the phone while speaking to the 911 operator. He stated that the officer asked him what he was drinking and when he gave her the can she threw it on the floor after he paid his money for it. An officer can be heard telling the male to

put his hands behind his back six times. § 87(2)(b) told the operator that now the officer was asking him to put his hands behind his back. § 87(2)(b) stated "I'm putting my hands behind my back for what reason?". The call was then disconnected. The third 911 call was between Operator 1350 and unidentified male indicated the following: Unknown male called and stated there is an incident at Kosciusko Street and Throop Avenue. He stated that police are beating a man up. The victim hurt his back and needs an ambulance. The unknown male stated "he is laying on the street. The police are still there. They got their knee in his back. I don't know what they're doing" (encl. 11A-B and 12A-F).

Command Log

The command log indicates that § 87(2)(b) was charged § 87(2)(b). He complained of pain to his legs and medical attention was requested (encl. 15).

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of January 4, 2011 with regard to the incident (encl. 18).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4)

Subject Officer(s) CCRB History

- PO Nelson has been a member of the service for two years and there are no substantiated CCRB allegations against her (encl. 2).
- PO Erdaide has been a member of the service for one year and there are no substantiated allegations against him (encl. 3).

Conclusion

Identification of Subject Officer(s)

PO Nelson was identified by arrest paperwork and acknowledged that she and PO Erdaide interacted with § 87(2)(b).

Investigative Findings and Recommendations

Allegation A- Abuse of Authority- PO Marlana Nelson questioned § 87(2)(b)

While § 87(2)(b) indicated he turned his music down upon request, the officer indicated he refused to do so. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *Exonerated*.

Allegation B- Force- PO Marlina Nelson used force against § 87(2)(b)

Allegation C- Force- PO Erick Erdaide used force against § 87(2)(b). § 87(2)(b) alleged that he was kned in the back and brought to the ground. § 87(2)(g)

PO Nelson did not knee § 87(2)(b) in the back. PO Nelson pushed § 87(2)(b)'s shoulder because he was resisting being handcuffed. PO Nelson did not see PO Erdaide knee § 87(2)(b) in the back § 87(2)(g)

PO Nelson asked § 87(2)(b) three times for his identification. The 911 tapes revealed that § 87(2)(b) was asked approximately six times to put his hands behind his back which he refused to do so. The emergency physician record indicates that § 87(2)(b) acted aggressively trying to kick while being arrested and fell sustaining blunt trauma to neck, head and back. § 87(2)(b) was also shackled around his wrists and feet § 87(2)(g)

According to the Patrol Guide's Scale of Escalating Force, "failure to comply with directions can be responded with firm grips on arms, shoulders that cause no pain but are meant to guide people. Minor physical resistance can be responded with wrestling holds and grips designed to physically overpower subjects and/or to inflict physical pain that ends when the technique is stopped and that causes no lasting injury" (encl. 1). § 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation C** be closed as *Exonerated*.

Team: 4

Investigator: _____ : _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date